IN THE COURT OF THE SUB JUDGE AT COONOOR
Present:- Tmt.M.Mekala Mythili., B.A., B.L.,
Sub Judge, Coonoor.
(J.O.Code: TN01541)

Tuesday the 16th day of September 2025
(2056 Thiruvalluvarandu, Visuvavasu Varudam, 31st day of Aavani)

A.S.No.25/2024 (TNNSOE000763-2024)

K.B.Subramani

.....Appellant/Defendant

// Vs //

K.M.Bellie

.....Respondent/Plaintiff

(Appeal against the Decree and Judgment of the District Munsif Court, Coonoor of the Nilgiris in O.S.No.66/2013, Dated 24.10.2024)

//Between//

K.M.Bellie

....Plaintiff

// Vs //

K.B.Subramani

.... Defendant

This Appeal is coming on 29.08.2025 for final hearing before me in the presence of Thiru.R.Manojkumar, Advocate for the Appellant/Defendant and Thiru.J.Chandran, Advocate for the Respondent/plaintiff. Upon perusing the records, upon hearing the both side oral arguments heard and having stood over till this day for consideration, this court delivers the following;

JUDGMENT

The Appeal is filed to set aside the Judgment and Decree in O.S.No.66/2013, dated 24.10.2024 decreeing the suit filed by the respondent/ plaintiff, allow this Appeal and to dismiss the suit filed by the respondent/plaintiff in respect of the suit schedule property with costs in the lower court in the interest of justice.

2. **The Brief facts of the Amended Plaint:**

The case of the plaintiff is that the plaintiff is the absolute owner of 0.02.00 hectare (5 cents) of land in R.S.No.22/1A2, old survey No.2/34 of Burliar village and said property formed part of 0.14 acre in old survey No.2/34 of Burliar Village and same was originally belongs to father of plaintiff namely Late.J.B.Mahalingam by virtue of Regd. Sale Deeds No.661/1942 and 342/1963. After demise of said Mahalingam and his wife, as per the oral partition between the plaintiff and his sister Mitchiammal, the suit property along with other properties were allotted to the absolute share of the plaintiff and since then the plaintiff has been in possession and enjoyment of the suit property and in recognition of his exclusive title, possession of two plots of land in Survey No.2/34 of Burliar Village, the Tahsildar, Coonoor ordered sub division of Survey No.2/34 by his proceedings dated 13.12.2000 and assigned new sub division No.22/1A2 to the land admeasuring 0.02.00 hectare. The defendant along with his relatives

made an attempt on 08.09.2012 and 21.08.2013 to encroach the suit property in respect of which a complaint was lodged by the plaintiff with the police. On enquiry the defendant told that he obtained approval for construction of a residential building on the said land from Burliar Panchayat, but the Panchayat officials informed the plaintiff that approval was granted to the defendant for construction of building only the land in Survey No.22/1A1 of Burliar Village and not the land in S.No.22/1A2 of Burliar Village. Hence, the plaintiff originally filed suit for permanent injunction, but after filing of the suit the defendant encroached the suit property and illegally constructed a building thereon in disobedience of the status quo order passed by this court in I.A.No.298/2013. Hence, the plaintiff amended the suit for the relief of delivery of vacant possession of the suit property and mandatory injunction to directing the defendant to demolish the building illegally put up by him.

3. **The Brief facts of the Written Statement filed by the Defendant:**

The grandfather of the defendant late. Mr.Nanjan is the absolute owner of the property in old. S.No.2/A to D/3 and in the year of 1930 one Mr.T.R.Lakshmanapillai filed a money suit as against Late.Nanjan before the Hon'ble Subordinate Judge at Udhagamandalam in O.S.No.23/1930, and a decree was passed in favour of the said T.R.Lakshmanapillai and on

30.03.1932 one Mr.L.Arumugam Pillai, the son of T.R.Lakshmana Pillai had purchased an extent of 3.25 acres of land in old S.No:2A to D/3 as an Auction purchaser in E.P.R.No.211/1930 in O.S.No.23/1930 on the file of the Subordinate Judge, Ootacamund, The Nilgiris. Subsequently on 01.03.1934 the said Arumugam Pillai sold his share to an extent of 3.25 acres in Old.S.No.2A to D/3, after sub division 1.53 acres in R.S.No.2A to D3A/1A/1, an extent of 1.44 acres in R.S.No.2A to D/3/5 and an extent of 0.28 acres in R.S.No.2A to D/3/7 in total 3.25 acres to Smt.Masiammal, W/o. Nanjan, who is grandmother of the defendant vide Sale Deed Doc.No.260/1934 and since then the date of purchase the Masiammal is the absolute owner with peaceful possession over the said property and after the death of Masiammal in the year of 1936, Late.Bellan, Bellie, Halammal became the absolute owner of the said property and after the death of above said Bellan and Bellie as per the family oral partition the female members were relinquished their right over the properties and the defendant after obtaining no objection cum declaration affidavit from remaining owners of his joint family property to construct a building in 0.30 acres of land out of 1.53 acres in R.S.No.22/1A1 of Burliar village and after obtaining the permission from the president of Burliar panchayat, he completed the construction of his building. The construction of the building was completed by spending huge money by the defendant, hence this suit has not been

maintainable.

4. **Before the Trial Court the following Issues were framed on 18.11.2016.**

1	Whether the plaintiff is entitled to the relief of mandatory injunction as prayed for to demolish the construction put up the defendant in the suit property and to restore the suit property in to its original stage?
2	Whether the plaintiff is entitled to the delivery of vacant possession of the suit property?
3	To what other reliefs?

5. Before the Trial Court the following Issues are recasted at the time of judgment as follows:

1	Whether the plaintiff proved that the defendant had encroached and put up construction on his land as contended in plaint?
2	Whether the plaintiff is entitled to the relief of mandatory injunction as prayed for?
3	Whether the plaintiff is entitled to the delivery of vacant possession of the suit property?
4	To what other reliefs?

6. On the side of the plaintiff, the PW-1 were examined, the Ex.A1 to Ex.A23 were marked. On the side of the defendants, the DW-1 were examined and the Ex.B1 to Ex.B6 were marked.

7. The Trial Court after considering both oral and documentary evidences, decreed the suit. Aggrieved by the Decree & Judgment, the defendant preferred the present Appeal.

8. **The Grounds of Appeal:**

The decision of the Lower Court is against law, the weight of evidence and the probabilities of the case. The appellant beg to submit that the learned District Munsif has erred egregiously in decreeing the suit filed by the respondent/plaintiff. The learned District Munsif has applied one yardstick to appreciate the evidence of the respondent and totally a different yardstick to appreciate the evidence of the appellant and if only the learned District Munsif had applied the same yardstick to appreciate the evidence of both the appellant and the respondent the learned District Munsif would not have come to the erroneous conclusion in decreeing the suit. The learned District Munsif has totally failed to understand the basis of a mandatory injunction suit the respondent is not the owner of the suit schedule property and was never in possession of the suit schedule property the respondent/plaintiff neither has ownership nor was in possession at any time and the respondent's title itself is under cloud and the respondent should have filed a suit for declaration whereas the respondent as filed a mandatory injunction suit without ownership or title.

8.1. The appellant is original owner of the suit schedule property and the title of the appellant is more older than that of the respondent and without looking into the title of the appellant in respect of the suit schedule property the lower court as decreed the suit for mandatory injunction. The appellant

states that the suit schedule property is a dwelling house in which the appellant and his family is residing from many years even before the suit was filed and the same has been corroborated by evidence and the appellant is paying the house tax to the Burliar panchayath and is also having electricity connection but the respondent/plaintiff has suppressed the same in the schedule of property and shown it as vacant land. The lower court has failed to frame proper issues especially when the appellant had taken up a stand that the appellant was already in possession of the suit schedule property and is the original owner and in possession to the suit schedule property. The lower court has failed to appreciate the categorical admission of the respondent while cross-examination that the appellant's grandmother had purchased the property i.e., Ex-B3 in the year 1934 itself. Further the respondent had admitted that the Ex-B3 was a valid one and registered document. Moreover, the respondent himself had admitted the Ex-B1 photographs of the appellant's house and the appellant is living in that house and the electricity bill Ex-B6, encumbrance certificates in Ex-B5, and Ex-B6 has also been admitted by the respondent along with other exhibit Ex-B2 which is a certified copy of the execution petition 211 of 1930 in O.S.No. 23 of 1930.

8.2. The lower court has given much credence to the claim of the respondent that he was in possession and the lower court has believed the

false story of the respondent. The lower court has given much credence to the exhibit A-1 and A-2 filed by the respondent/plaintiff which are manipulated documents created by the vendor of the plaintiff's father and plaintiff's father without any specific boundaries to cheat the grandmother of the appellant and the appellant's family and it has no binding on the suit survey number. Exhibit A-4, A-5, Ex-A8, Ex-A10, and Ex-A11 are all xerox copies and created by the respondent/plaintiff marked and received by the lower court even though they are xerox copies. The lower court has not marked the commission report through the commissioner and the commission report has been marked only after the arguments stage on only two days before the judgment by the lower court on its own without the written consent of the appellant. The lower court with a view to help the respondent/plaintiff has marked and admitted many xerox copies (photostat copies) which are manipulated documents and has relied on the same which is against the evidence act and justice and fair play which has caused great disadvantage to the appellant. The lower court has not read the schedule of property where the respondent/plaintiff has mentioned it as vacant land whereas ironically the respondent has filed a suit for mandatory injunction to demolish vacant land. The suit schedule of property and prayer itself is not clear as to what is to be demolished and lower court has overlooked the same for the reasons best known to the lower court. The lower court has failed to

see that the appellant had adduced sufficient oral evidence to prove his defense and his titile and possession compared to that of the respondent and lower court has decreed the suit on flimsy grounds. Hence, this court pleased to set aside the Judgment and decree in O.S.No.66 of 2013 dated 24.10.2024 decreeing the suit filed by the respondent/plaintiff, allow this appeal and to dismiss the suit filed by the respondent/plaintiff in respect of the suit schedule property with costs in the lower court in the interest of justice.

9. <u>The points for consideration in this Appeal are as follows</u>;

1.	Whether the trial court has properly considered the evidence of both parties and discussed the issues in prospective manner?
2	Whether the Appeal deserves to be allowed? Or not ?
3	To what other reliefs?

10. For the sake of convenience, both parties are referred as plaintiff and defendants as referred in the Judgment of the trial court.

11. <u>Points No.1 to 3:</u>

The learned counsel for the defendant in his oral arguments have contended that the learned District Munsif has totally failed to understand the basis of a mandatory injunction suit. The respondent is not the owner of the suit schedule property and was never in possession of the suit schedule property the respondent/plaintiff neither has ownership nor was

in possession at any time. The suit is filed for the relief of mandatory injunction directing the defendant to demolish the construction put up in the suit property and restore suit property in its original stage and also for delivery of vacant possession. On perusal of plaint, it is noticed that originally the suit was filed for relief of permanent injunction with regard to the suit property, comprised under old Survey No. 2/34, R.S.No.22/1A2 extent of 0.02.00 hectare (5 cents of land) with in the specific boundaries. Subsequently the suit was amended for the relief of mandatory injunction as per order passed in I.A.No.63/2015, dated 04.06.2015. When the suit is filed for mandatory injunction, the plaintiff ought to give the measurements of the property to be demolished. However, the plaint schedule was not amended and the laying of construction have not been mentioned in the plaint schedule property. During the cross-examination of PW–1, the photographs have been produced and marked as Ex.B1 on the defendant side. On perusal of Ex.B1, it is noticed that the existence of the concrete building have been reflected in the photographs. On the plaintiff side, the photographs pertaining to the suit property have been produced and marked as Ex.A13 to A17 on the plaintiff side. On perusal of Ex.A13 to A.17, it is noticed that it have been reflected the construction dated 08.10.2013, 09.10.2013, 19.10.2013 30.10.2013 and 01.011.2013. On perusal of Ex.A14 to Ex.A17, it is noticed that it would have been taken when the construction work was took place on

the suit property. However, on perusal of Ex.B1, it is noticed that well finished concrete building could be found over the suit property. Through the evidence of the DW-1, the electricity bill have been produced and marked as Ex.B6. The learned counsel for the plaintiff in his oral arguments have contended that the trial court have passed on order of interim injunction by restraining the defendant and his men agents from interfering with the plaintiff peaceful possession and enjoyment over the suit property. As per order passed in I.A.No.298/2013 dated 13.09.2013, status quo ordered to be maintained till 19.09.2013 and on 19.09.2013 undertaking as given by the respondent to maintain the status quo prevailed as in the photograph produced by the respondent therein. The application in I.A.No.298/2013 have been filed for the order of interim injunction restraining the respondent, his men, servant, agent from entering into the schedule property, constructing any building or in any way interfering with the petitioners peaceful possession and enjoyment. The petition was closed on 03.12.2014, since the respondent remained exparte in the suit. When DW-1 has been confronted with the passing of order to maintain the status quo, the DW-1 have stated that they have been residing in the same house. When DW-1 have been confronted with the construction of house at Survey No.22/1A2 instead of Survey No.22/1A1, DW-1 have admitted the same. The learned District Munsif upon the perusal of the Commissioner report have mentioned that the

defendant had encroached the totally 2065 sq.feet in the suit schedule property.

11.1. However, after receipt of commissioner report, the plaintiff have not made amendment in the schedule of the property by mentioning the encroachment of 2065 sq.feet and also have not mentioned the measurements of the construction to be demolished. The trial court have answered the issue No.2 and 3 against the plaintiff by stating that there is no exact description of property regarding the encroachment and the relief of mandatory injunction could not be granted. Upon perusal of the discussion made to the issue No.2 and 3, the trial court ought to have dismissed the suit. However, as a final result, the trial court have decreed the suit by granting the mandatory relief of directing the defendant to demolish the construction. As such, this court is of view that the trial court, have errored in decreeing the suit. As per Order 7 Rule 3 of C.P.C where the subject matter of the suit is immovable property, the plaint shall contain description of the property sufficient to identify it, and, in case such property can be identified by boundaries or numbers in a record of settlement or survey, the plaint shall specify such boundaries or numbers. However, in this case, the plaintiff have not identified the property properly with regard to the relief of mandatory injunction.

11.2. The learned counsel for the defendant in his oral arguments have contended that the trial court has not read the schedule of

property where the respondent/plaintiff has mentioned it as vacant land whereas ironically the respondent has filed a suit for mandatory injunction to demolish vacant land. Upon perusal of the plaint schedule, this court is of view that the above aspect is acceptable and the trial court has failed to considered the same.

11.3. The learned counsel for the defendant in is oral arguments have contended that without given the opportunity to the parties, the trail court have marked the commissioner report on its own without the written consent of the defendant. On perusal of Judgment of the trial court, it is noticed that the discussion have been made with regard to the commissioner report marked as Ex.C1, However in the annexure of the list of documents, the commissioner report have not been mentioned. During the time of receipt of document from the trial court, the commissioner report also not received by this court. Hence, the commission report have been called for from the trial court and it has been received by this court on 10.09.2025. On perusal of Ex.C1, it is noticed that the commissioner in his report have stated as follows;

> *"On local inspection and the Identification of the Surveyor and along with the help of Field Map Book (FMB). I found that the Respondent had constructed the Building in an extent of 2065 Sq.ft of land comprised in present R.S.No.22/1A2 and an extent of 123 Sq.ft of land comprised in present R.S.No.22/2 of Burliar Village*

morefully delineated in "YELLOW" and "BLUE" stripes in the sketch issued by the surveyor."

"The Respondent has constructed the R.C.C Building in an extent of 2065 Sq.ft of land in New R.S.No.22/1A2 and extent of 123 Sq.ft of land in New R.S.No.22/2 of Burliar Village."

On perusal of Commissioner report and the photographs produced along with the commissioner report, it is noticed that it was taken on 04.04.2014 and the defendant have completed the construction during the pendancy of the suit itself. This court is of view that the trial court failed to consider the same and also fail to appreciate the description of property given by the plaintiff in the plaint. The trial court have allowed the suit by ordering for demolition of construction put up by the defendant and also ordered for hand over the delivery of possession of the suit property within 2 months of the order from the date of Judgment. When the defendant failed to comply the order, the plaintiff will be constrained to file execution petition. If the description of property doesn't contain the measurements of the building to be demolished, the plaintiff would not get the order for demolition before the executing court. This court is of view that the trial court have not given specific reason for ordering demolition of the property without any measurements in the schedule of the property. As such this court is of view that the trial court has over looked the same for the reasons best known.

11.4. The learned counsel for the defendant in his oral arguments have contended that the trial court totally failed to understand the basis for the mandatory injunction and the title itself is under cloud and the plaintiff should have filed the suit for declaration, however as pointed out earlier this court is of view that the trial court have correctly answered the issue no.1 in favour of the plaintiff by holding that the defendant had constructed the building on the major portion of 2065 sq.ft on the plaintiff's suit property. The trial court also come to the conclusion that as per Ex.A5 proceedings the plaintiff divided his property and the contention of the defendant is that he has not been served with proper notice, the trial court have come to the conclusion that the defendant has not filed any appeal before the District Revenue Officers and it doesn't create any cloud over the title of the plaintiff. As such it is observed that the plaintiff has proved his better title on the suit property comprised in R.S.No.22/1A2 of the Burliar Village. Further the trail court have come to the correct conclusion that the defendant has not produced any document to establish that the property purchased under Ex.B2 and B3 was re-surveyed as R.S.No.22/1A2. On perusal of Ex.A22, it is noticed that the property covered under Ex.B3 is comprised in Survey No.22/1A1. The contention of the defendant is that he constructed his residential building in R.S.No.22/1A1. However, on perusal of the commission report, it is noticed that the major portion of the

construction was made in R.S.No.22/1A2. On perusal of Ex.A18, it is noticed that the defendant have been given permission to construct the house only on R.S.No.22/1A1. However on perusal of the commission report marked as Ex.C1, it is noticed that the defendant had construct the building on R.S.No.22/1A2.

11.5. The learned counsel for the defendant in his oral arguments have contended that the defendant have adduced sufficient oral evidence to prove his defense his title and possession compared to that of the plaintiff and the trial court had decreed the suit on filmsy grounds. However this court is of view that the trial court have considered the evidence and documents in prospective manner and it has failed only to consider the schedule of the property and failed to consider the non mentioning of the measurements of the building constructed in the suit property. When the minor portion of the suit property is encroached and construction have been made, the trial court would have decreed the suit. When the major portion of 2065 sq.ft have been shown as encroached area and well finished concrete building have been shown in the photographs produced on the plaintiff side and also in the commissioner's report, this court is of view that the trial court would have applied the principals of equity.

11.6. Upon perusal of the both side evidence and documents and the judgment of the trial court, this court is of view that except for the reason

of non mentioning of the measurements of the encroachment made in the suit property, interfering is not needed with the finding of the trial court. However, the trial court has ordered for the mandatory injunction without the measurements of the building, which is fatal. Hence this court is of view that the finding of the trial court need to be reversed. Hence this court is inclined to allow the appeal. Since the defendant have encroached the major portion of the plaintiff's property, this court is of view that the defendant is not entitled for the cost of this appeal.

In the result, the appeal is allowed by setting aside the decree and Judgment passed in O.S.No.66/2013 by the District Munsif, Coonoor, dated 24.10.2024. No Cost.

Dictated to Steno - Typist, typed by her directly in computer and corrected & pronounced by me in open Court, on this 16th day of September 2025.

M. MEKALA MYTHILI

Digitally signed by M. MEKALA MYTHILI
Date: 2025.09.16 15:14:26 +0200

Sub Judge,
Coonoor.

Copy to:

The District Munsif,
Coonoor.

Fair Judgment